

Executive Notice and Demand to Cure — FHA/ADA Interference | Deadline: 9:00 a.m. CT Tuesday, May 12, 2026

From Katie Copeland <katie@katiecopeland.com>
To WP@WEINSTEINPROPERTIES.COM, aweinstein@weinsteinproperties.com, ijecklin@weinsteinproperties.com
CC EPatarinski@weinsteinproperties.com, lbenacha@weinsteinproperties.com <LBENAICHA@WEINSTEINPROPERTIES.COM>, Glynis Zavarelli <gzavarelli@wandzlaw.com>, Michelle Sortor <msortor@wandzlaw.com>, ELISA.ROMBACH@PHLY.COM, amye.brochstein@phly.com, PQUINN@WEINSTEINPROPERTIES.COM
Date Monday, May 11th, 2026 at 1:39 AM

Ms. Weinstein, Mr. Jecklin, Counsel, and Claims Representatives:

Please find attached two documents transmitted pursuant to the Fair Housing Act, 42 U.S.C. § 3617, and the Americans with Disabilities Act, 42 U.S.C. § 12203(b):

1. **Executive Notice and Demand to Cure** — the operative demand, setting forth the factual record, legal basis, and required cure.
2. **Litigation Risk Analysis** (*Confidential — For Settlement Purposes Only / Fed. R. Evid. 408*) — a pre-filing risk summary prepared for the benefit of senior leadership and coverage counsel.

An interactive version of the interference timeline referenced in the demand, with hyperlinked source citations, is available at: <https://civil-rights-timeline-co-ucx188h.gamma.site/>

Written confirmation of cure is required by **9:00 a.m. Central Time on Tuesday, May 12, 2026**. Absent a response, I intend to proceed with emergency federal relief as described in the demand.

Respectfully,

Kathryn M. Copeland

(817) 789-8498



KATHRYN M. COPELAND

ATTORNEY · AUTHOR · ACCESS ARCHITECT

- (817) 789-8498
- Katie@KatieCopeland.com
- KatieCopeland.com



FEATURED PUBLICATION

[Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts](#)

American Bar Association · 2026

3.13 MB 2 files attached

2026.05.11_Demand_Letter.pdf 3.04 MB

Litigation_Risk_Analysis.pdf 94.54 KB

LITIGATION RISK ANALYSIS

Why This Case Resolves at Settlement — or at Summary Judgment

To:	Allison Weinstein, Co-President and CEO, Weinstein Properties; Lyle Benaicha, In-House Counsel; Amy Brochstein, Philadelphia Insurance Companies (amy.e.brochstein@phly.com); Glynis Zavarelli and Michelle Sortor, Wentz & Zavarelli LLP
From:	Kathryn M. Copeland, TX Bar No. 24086056
Date:	May 11, 2026
Re:	FHA § 3617 / ADA § 12203(b) Interference — Pre-Filing Risk Summary and Settlement Proposal
Deadline:	9:00 a.m. Central Time, Tuesday, May 12, 2026

The bottom line: Every critical element of an FHA § 3617 / ADA § 12203(b) interference case is proved by Weinstein's own court filings. There is no factual dispute. The evidence of bad faith is the filing itself. A federal judge reviewing this record on a TRO motion will see a closed causal loop with no viable defense — not a close call.

I. Three Closed Causal Loops — Fully Documented by Weinstein's Own Filings

A "closed causal loop" means every step is in writing: the interference act, the protected activity it targeted, and the documented harm. No inference is required. The court reads Weinstein's own filings and sees the pattern.

Date / act	Protected activity targeted	Documented outcome	Why no defense exists
Jan. 5, 2026 Motion to Strike (141st Dist. Ct.)	Dec. 29 ADA accommodation motion; Dr. Huang's physician evidence of functional limitations	Motion succeeded. Physician evidence excluded. Accommodation denied without medical support. Dr. Huang documents acute worsening Feb. 25, 2026 (intracranial hypotension, fall with head injury).	Weinstein's own Jan. 5 filing acknowledges receipt of physician letters (it moves to exclude them). The May 6 amicus then claims 'no documentation.' The documentation 'absent' was excluded by Weinstein's own motion. Bad faith is proved by Weinstein's own paper trail.
Oct. 27, 2025 Housing cutoff (Housing)	June–August 2025 FHA/ADA accommodation requests; Brochstein's written commitment to housing tied to remediation completion	Effectively homeless. Contents unretrievable — Sept. 8 Dallas Mold Consultants inspection: 'no equipment on site, all contents considered contaminated.' Remediation was not complete at cutoff.	Brochstein (insurer) confirmed housing in writing tied to remediation completion. Sept. 8 inspection proves remediation was not complete on Oct. 27. The cutoff cannot be defended as 'lease expiration' when the written promise expressly overrides that.
May 6–8, 2026 Nonparty amicus + blocked response (Decker → 141st / 233rd)	ADA accommodation requests pending before Judge Newell; right to correct a false factual narrative about disability documentation	Disability-discrediting amicus brief before Judge Newell. Copeland's May 8 response rejected: 'Rejected — Vexatious Litigant.' May 15 deadline is imminent. False narrative stands unanswered.	Weinstein filed as a nonparty where response would normally be available, then the VL restriction blocked response. Weinstein filed where a response was blocked. This is the pincer — two mechanisms working together to ensure the false narrative cannot be corrected before the court ruling.

II. Elements and Proof — No Gaps

Both FHA § 3617 and ADA § 12203(b) require four elements. Every element is documented by multiple independent sources.

Element	What it requires	Document proving it	Can Weinstein dispute it?
Protected activity	Plaintiff engaged in activity protected by FHA or ADA (accommodation requests, opposing discriminatory practices, exercising housing rights)	June 27, Aug. 14–15, Aug. 18, Dec. 29 accommodation requests; March 4 emergency ADA motion; multiple court filings asserting disability rights	No — activity is in writing, formally served on Weinstein's counsel
Actual notice	Defendant knew of plaintiff's protected activity at the time of the interference	Jan. 5 motion acknowledges Dr. Huang letters; Jan. 8 notice to Benaicha/Brochstein names § 12203(b) by statute; multiple court filings served on counsel	No — Jan. 8 email to in-house counsel proves corporate-level notice
Interference	Defendant coerced, intimidated, threatened, or interfered with plaintiff in connection with protected activity	Jan. 5 motion to strike; Oct. 27 housing cutoff; May 6 nonparty amicus; May 8 filing rejection; sanctions motions after disability barriers raised	No — all acts are in the court record
Causal connection	A causal link between the protected activity and the adverse action	Nonrenewal 8 days after Aug. 18 demand; Jan. 5 motion filed 7 days after Dec. 29 ADA motion; May 6 amicus filed in direct response to accommodation requests in multiple proceedings	No — temporal proximity is tight; Jan. 5 filing admits it targets the accommodation motion
Corporate ratification	(For punitive damages): corporate principals knew of and ratified the conduct	Jan. 8 notice to Benaicha (in-house counsel) + Brochstein (insurer); Jan. 13 response filed motion to transfer — not correction of conduct	No — corporate principals received written notice and escalated rather than correcting

III. Why Each Defense Fails

Weinstein's defense	The argument	Why it fails — specific fact
Litigation privilege / Noerr-Pennington	Filing court documents is protected petitioning activity immune from liability	Sham exception: The Jan. 5 motion was filed with knowledge that the documentation it characterized as absent existed — Weinstein's counsel had the letters and moved to exclude them. Fraud exception: Sortor represented to a court that contents cleaning was 'not regulated' under TMARR after receiving Copeland's Dec. 2, 2025 email attaching TDLR authority establishing it is regulated. TDRPC 3.03.
No disability / no documentation	Plaintiff has not established disability; documentation is insufficient	The SSA Fully Favorable Decision (April 10, 2026, onset June 8, 2023) is a federal agency adjudication under 42 U.S.C. § 423. A state party cannot relitigate federal disability status. More importantly: this defense is itself the interference act — attacking disability status to defeat accommodation requests is textbook § 12203(b).

Reasonable accommodation was offered	Hotel stays provided during remediation satisfied any accommodation obligation	Zavarelli's Sept. 19, 2025 call confirms she knew the Holiday Inn was inaccessible given Copeland's documented balance and cognitive impairments ('I have not seen that, but I will look for it'). Brochstein's written commitment tied housing to remediation completion. Cutting off housing before remediation was complete is not reasonable accommodation — it is its termination.
Copeland obstructed remediation	Plaintiff's conduct caused remediation delays, justifying Weinstein's response	Zavarelli's own Sept. 19, 2025 call: 'I'm not aware of TDLR stopping our remediation work.' ServPro withdrew after receiving Copeland's DTPA demand and consulting its own attorney — a legal decision by a third party, not obstruction by Copeland. Weinstein's litigation counsel concedes no obstruction on the call record.
Ordinary litigation disagreement	Everything Weinstein did was within the normal bounds of litigation defense	Filing as a nonparty in a case where you have no standing to file (Decker) is not normal litigation defense. Filing to exclude physician evidence, then claiming the evidence doesn't exist, is not a disagreement — it is manufactured absence. The Jan. 8 notice gave corporate-level opportunity to correct; escalation rather than correction shows deliberate choice.

IV. What a Federal Judge Sees at the TRO Hearing

Factor	Analysis
Likelihood of success on merits	The closed causal loops mean no factual dispute — the acts are in Weinstein's own filings. No credibility determination is required. The court reads the Jan. 5 motion (acknowledges physician letters), the Jan. 8 notice (corporate-level warning), and the May 6 amicus (claims no documentation). Likelihood of success is high as a matter of law, not inference.
Irreparable harm	Three independent irreparable harms: (1) May 15 deadline — if the false documentation narrative stands unanswered before Judge Newell, it becomes part of the permanent record and prejudices every pending proceeding. Money damages cannot undo a court ruling made on a false factual premise. (2) Ongoing housing instability and documented neurological deterioration — Dr. Huang's Feb. 25 letter directly connects worsening to denied accommodation. (3) The harm is happening in real time.
Balance of equities	Weinstein is asked to: (a) not file more disability-discrediting nonparty briefs; (b) correct a false statement it already made; (c) fund housing it already promised in writing. The burden on Weinstein is administrative. Copeland faces ongoing homelessness, worsening neurological injury documented by UT Southwestern, and an unanswered false narrative before multiple courts. The balance is not close.
Public interest	Congress enacted FHA § 3617 and ADA § 12203(b) specifically to prevent landlords from using litigation tactics to defeat disability accommodation rights. Federal courts have a strong institutional interest in enforcing these statutes. The 5th Circuit acknowledged in <i>Strife v. Aldine ISD</i> , No. 24-20269 (5th Cir. May 16, 2025) that the § 12203(b) interference standard is unsettled — this case is well-positioned to establish favorable circuit precedent.

V. What Sophisticated Defendants Do When They Cannot Defend — And Why Settlement Now Is the Right Call

When institutional defendants receive a demand with this evidentiary profile — closed causal loops, corporate-level ratification documented in writing, a federal agency adjudication that forecloses the central defense — experienced risk counsel follow a predictable sequence:

- Escalate to senior risk management and pull coverage counsel separately from defense counsel — because if conduct is found intentional, coverage exclusions may leave the company personally exposed without insurance backing.
- Commission a frank expected-value analysis: probability of loss at trial × expected damages (actual + punitive) + defense costs + reputational exposure. Compare that number to the cost of settlement now.
- Assess pattern-or-practice risk — whether a federal complaint, once filed, opens discovery that could reveal similar conduct toward other disabled tenants, converting an individual case into a class.
- Evaluate reputational exposure — a federal civil rights complaint is public record. The facts in this demand, if filed, are available to press, HUD, DOJ, and housing advocates.
- Look for a structure that settles the immediate risk without a full admission — phased housing stabilization, record correction, and a standstill can be approved quickly by a risk committee without requiring admission of liability.

The plaintiff's leverage in this situation comes from three sources:

- Timing — the May 15 deadline means the irreparable harm is not speculative. It is imminent. A TRO motion filed this week would be heard before the damage is done.
- The coverage question — if Weinstein's insurer concludes the May 6 amicus and Jan. 5 motion constitute intentional interference with federal rights, the policy's intentional-act exclusion may apply. That means the company, not the insurer, bears the exposure. Weinstein and its insurer now have different interests. Settling now, before that analysis is complete, keeps the company and insurer aligned.
- Discovery — a federal complaint triggers depositions of Allison Weinstein, Lyle Benaicha, Glynis Zavarelli, Michelle Sortor, and Amy Brochstein. Every internal communication about accommodation strategy, the Jan. 5 motion, the May 6 amicus, and the housing cutoff decision becomes discoverable. The deposition threat alone is a powerful settlement incentive for institutional defendants.

The settlement structure proposed in the accompanying demand is designed to be approvable quickly at the risk-committee level without requiring admission of liability: immediate 90-day bridge housing (replaces a promise already made in writing), correction of one specific false statement, a standstill on further disability-discrediting filings, and attorney's fees for the federal interference claim. This is not a demand designed to maximize a number. It is designed to stop the harm.

Every week of delay converts a correctable interference into a permanent record. The cost of correction is lowest today.

Nothing in this memorandum waives any rights, claims, objections, remedies, privileges, or appellate arguments. All rights are expressly reserved.

Kathryn M. Copeland
State Bar No. 24086056
Tel: (817) 789-8498
Email: katie@katiecopeland.com



1137 S. PINE STREET
GRAPEVINE, TEXAS 76051
MAIN: (817) 789-8498
KATIE@KATIECOPELAND.COM

MAY 11, 2026

Via e-mail

TO: ALLISON WEINSTEIN, CO-PRESIDENT AND CHIEF EXECUTIVE OFFICER,
WEINSTEIN PROPERTIES AND SENIOR LEADERSHIP;
WP@WEINSTEINPROPERTIES.COM

CC: WEINSTEIN MANAGEMENT CO., INC.; WMCI DALLAS X, LLC; WEINSTEIN
PROPERTIES LEGAL DEPARTMENT / GENERAL COUNSEL
(LBENAICHA@WEINSTEINPROPERTIES.COM AND
EPATARINSKI@WEINSTEINPROPERTIES.COM); WENTZ & ZAVARELLI,
L.L.P. (GZAVARELLI@WANDZLAW.COM AND
MSORTOR@WANDZLAW.COM); TOKIO MARINE SPECIALTY INSURANCE
COMPANY / PHILADELPHIA INSURANCE COMPANIES
(ELISA.ROMBACH@PHLY.COM AND AMYE.BROCHSTEIN@PHLY.COM);
PQUINN@WEINSTEINPROPERTIES.COM

RE: *Executive Notice and Demand to Cure FHA / ADA Interference,
Preserve Evidence, Correct Misleading Disability-Documents
Representations, and Fund Independent Housing Stabilization
Before Emergency Federal Filing*

Note to Recipients: An interactive version of the interference timeline
attached hereto as Exhibit A — including hyperlinked source citations for each
entry — is available at: <https://civil-rights-timeline-co-ucx188h.gamma.site/>.
Recipients are encouraged to review source documents directly before
responding to this demand.

I. Executive Summary

This demand concerns one narrow federal issue:

**Weinstein has interfered with my exercise and enjoyment of federally
protected Fair Housing Act and Americans with Disabilities Act rights by
using housing leverage, procedural pressure, medical-proof attacks,
sanctions requests, and a cross-proceeding amicus brief to discredit
disability status, chill accommodation requests, and portray protected
activity as litigation abuse.**

This demand does **not** ask Weinstein to concede every issue in the state-court cases. It does **not** ask Weinstein to waive legitimate defenses. It asks Weinstein to do five practical things now:

1. **Stop the interference** — do not use cross-proceeding filings or third-party communications to undermine FHA / ADA rights.
2. **Correct the record** — acknowledge the disability documentation, physician materials, ADA filings, and SSA / SSDI materials Weinstein received or knew about.
3. **Preserve evidence** — preserve communications and strategy materials relating to disability, accommodation, housing, property, insurance, sanctions, and the May 6 amicus.
4. **Fund anti-interference mitigation** — provide independent, medically appropriate housing stabilization to stop the coercive effect of housing cutoff after protected activity.
5. **Pay limited-scope federal-claim fees** — cover reasonable fees needed to investigate, negotiate, and, if necessary, file emergency FHA / ADA interference relief.

If senior leadership was not aware of the full record, this letter gives Weinstein a final opportunity to correct course before emergency federal motion practice becomes necessary on Tuesday, May 12, 2026.

II. The Record of Irrational Escalation

This is not a normal landlord-tenant dispute. What follows is a documented corporate litigation campaign against a single pro se disabled mother — conducted across six forums, generating 300 docket events in under eight months.

From September 2025 through May 2026, Weinstein Management Co. and its counsel undertook the following against one unrepresented, disabled, homeless claimant:

- Obtained a Temporary Restraining Order and Default Temporary Injunction without disclosing the September 8, 2025 Dallas Mold Consultants report — a report in counsel's possession showing contamination worse than the findings that prompted the underlying accommodation request.
- Filed coordinated motions to strike medical evidence — Dr. Isabel Huang's correspondence — simultaneously across three separate dockets on January 5, 2026.

- Invoked a void vexatious litigant order (entered 131 days after plenary power expired) to extinguish my appellate rights on February 13, 2026, while I was hospitalized for an acute neurological event and ADA accommodations had been formally requested and denied.
- Filed a Motion for Sanctions against me on April 23, 2026, after receiving written statutory notice of 42 U.S.C. § 12203(b) and § 3617 violations on January 8, 2026.
- Filed a nonparty amicus brief on May 6, 2026 — without standing — in a separate Dallas County proceeding addressing my disability rights.
- Issued more than 30 nonparty subpoenas, including to my physicians, a police department, and hotel records.

The financial logic of this campaign does not hold. Before a single lawsuit was filed, Weinstein had the opportunity to resolve this matter for \$175,500 — a settlement demand made July 26, 2025, within the applicable \$5,000,000 policy limit, representing less than 4% of available coverage. Weinstein did not respond. Instead, Weinstein filed a retaliatory lawsuit in September 2025, generated 300 docket events across six forums, and issued more than 30 nonparty subpoenas — at an estimated legal cost, across multiple retained firms, exceeding \$100,000. By November 2025, the damages trajectory had reached \$10,000,000+ — a figure communicated directly to Weinstein and its insurer in the November 5, 2025 Stowers demand. Weinstein escalated anyway.

The punitive-damages standard under *Kolstad v. American Dental Ass'n*, 527 U.S. 526 (1999) — malice or reckless indifference to federally protected rights — is satisfied on the face of this record. Allison Weinstein holds a Juris Doctor. She is the signatory to Weinstein Properties' ADA Site Compliance program. Her company publicly displays the Equal Housing Opportunity logo — a federal commitment under 42 U.S.C. § 3604. This interference was not inadvertent.

III. Immediate Federal Issue: Cross-Proceeding Anti-Accommodation Interference

On May 6, 2026, Weinstein Management Co., Inc. and WMCI Dallas X, LLC filed or transmitted a nonparty amicus brief in Cause No. 236-363132-25, *Kathryn Copeland v. Kelly Decker*, expressly addressing my ADA accommodation requests. Weinstein then transmitted or relied on that amicus material in Cause No. 141-370402-25, *Weinstein Management Co., Inc. and WMCI Dallas X, LLC v. Kathryn Copeland*. [Source](#)

The transmittal describes the filing as “WMCI, Dallas X, LLC and Weinstein Management Co., Inc.’s Amicus Brief to the Court Regarding Kathryn Copeland’s Requests for Accommodations Under the ADA.” [Source](#)

The May 6 amicus:

- describes my disabilities as “**purported**”;
- characterizes accommodation requests as attempts to “**dismantle the adversarial process**”;
- claims I seek “**an unlimited advantage**”;
- portrays disability-related limitations as proceeding “**under the guise**” of inability to participate;
- represents that I “**wholly failed to provide documentation confirming the basis for her disability**”; and
- asks that any disability or accommodation finding in the Decker case not be used in Weinstein’s litigation.

This does not merely contest a specific procedural request. It recasts protected disability-accommodation activity as litigation abuse and seeks to influence another court’s treatment of my ADA rights while protecting Weinstein’s litigation position in its own cases.

IV. Weinstein Had Actual Notice Before the May 6 Amicus

The May 6 amicus did not arise in ignorance. By that date, Weinstein and its counsel had repeated notice of disability, protected accommodation activity, medical documentation, housing instability, and SSA / SSDI materials.

June 27–30, 2025: Original Accommodation Request and First Denial — Benaicha CC'd

June 30, 2025 at 2:08 PM: [Formal ADA/FHA accommodation request](#) sent to Property Manager Kodi Walker, CC'd directly to Lile Benaicha (lbenaicha@weinsteinproperties.com), Weinstein's General Counsel. Subject: 'ADA/FHA Accommodation Request and Notice of Urgent Health Risk — Unit #2145.' Attachments: BioTex Mold Assessment Report (June 18, 2025) by licensed assessor Kyle Reist (License #MAC1742) declaring unit 'unfit for human occupancy'; State Farm denial confirming displacement not covered by renter's insurance; Texas Occupations Code § 1958.101. Request: 14-day relocation to Nobleman Hotel (availability confirmed), service animal boarding, licensed remediation. Benaicha received this request the day it was sent.

June 30, 2025 at 5:42 PM: [Walker, on behalf of Weinstein, explicitly denied the accommodation](#): 'we are not able to accommodate requests for relocation or hotel reimbursement.' Only alternatives offered: transfer to another unit or early lease termination — coercive, not a good-faith interactive process under the FHA. Benaicha received this denial.

June 30, 2025 at 8:50 PM: TDLR Complaint #0000018107 (unlicensed mold remediation) and HUD Fair Housing complaint filed. [Formal notice sent](#) directly to Benaicha with complaint numbers and July 1, 2025 deadline. Benaicha had actual written notice of federal civil rights exposure by close of business June 30, 2025 — six months before the January 8, 2026 statutory notice.

July 5, 2025: Jessika Calkins Call — Corporate-Level Denial

July 5, 2025: Five days after Benaicha received notice of two regulatory complaints and a formal ADA/FHA accommodation request, [senior leasing manager Jessika Calkins called Ms. Copeland](#). Calkins stated four or more times: 'We're not required to relocate you'; threatened lease enforcement ('By not allowing us to come in... you are now violating your lease'); refused to engage with the ADA question directly ('Katie, I'm not going to continue'); stated: 'Our obligation is to follow our lease agreement' — explicitly subordinating the ADA to the lease; and represented that 'our upper management... we are very well versed in these things,' confirming corporate-level review. This is the original § 3617 interference act. (Note: Company website prominently displays the Americans with Disabilities Act logo and the Equal Housing Opportunity claim.)

(804) 967-5100		CONTACT US
wp@weinsteinproperties.com		PRIVACY POLICY
Equal Housing Opportunity		ACCESSIBILITY POLICY
© 2020 Weinstein Properties		TERMS & CONDITIONS

November 9, 2025: Pre-Statutory-Notice Direct Contact to Benaicha and Brochstein

On November 9, 2025 — before the January 8, 2026 statutory notice — [Ms. Copeland sent written notice](#) directly to Lile Benaicha (lbenaicha@weinsteinproperties.com) and Amy Brochstein (amye.brochstein@phly.com) documenting the November 3, 2025 housing cutoff, Weinstein's refusal to honor the August 14–15 housing assurance, the ongoing mold-displaced homelessness, and the escalating federal civil rights exposure. This was the third direct communication to Benaicha — following the June 30 accommodation request and the June 30 regulatory-complaint notice — and it was delivered two months before the formal statutory demand. Benaicha's awareness of federal civil rights exposure therefore predates the January 8 statutory notice by more than two months.

September–October 2025 — Retaliatory Litigation Filed After Federal Civil Rights Demands.

September 19, 2025: Approximately two months after Ms. Copeland's formal ADA/FHA accommodation demands and explicit threats of federal civil rights litigation — [Weinstein Management Co., Inc. and WMCI Dallas XC, LLC filed suit against Ms. Copeland](#) in the 141st District Court, Tarrant County, Cause No. 141-370402-25. Filing suit against a person who has exercised or threatened to exercise federal civil rights is interference under 42 U.S.C. § 3617. *See Bill Johnson's Rests. v. NLRB*, 461 U.S. 731, 744 (1983) (litigation loses protection when filed with retaliatory motive). Weinstein then obtained an ex parte TRO on October 2, 2025, and a default Temporary Injunction on October 14, 2025, while Ms. Copeland — a person with documented neurological and physical disabilities — was unable to appear. The bond set to protect Ms. Copeland's interests: \$1,000.

At the time of the TRO application, Weinstein possessed a September 8, 2025 mold remediation assessment showing contamination conditions *worse* than Ms. Copeland's June 18, 2025 BioTex report. This report was not disclosed to Ms. Copeland or to the court. Obtaining a court order against a disabled tenant by presenting a selective evidentiary picture while suppressing contrary evidence is fraud on the court and spoliation — conduct outside Noerr-Pennington's protection regardless of framing. Weinstein's own [October 10, 2025 Motion for Protective Order](#) acknowledges (in footnote 2) that Ms. Copeland's counterclaims included § 3604(f)(3)(B) and § 3617 — confirming Weinstein understood the federal civil rights nature of the dispute while simultaneously seeking to block Ms. Copeland's discovery into their conduct.

Unauthorized Pre-TRO Property Removal and Ongoing Detention of Ms. Copeland's Belongings

On **September 23–24, 2025** — more than one week before Weinstein obtained any court order — Dedicated Mold (Weinstein's remediation contractor) coordinated with Reign Restorations to pack up and remove Ms. Copeland's personal property from Unit 2145 without Ms. Copeland's consent and without judicial authorization. A large volume of belongings was transported to a Reign Restorations storage facility; substantial additional items — including clothing, toiletries, and flat-screen televisions — were left unsecured in the apartment. The TRO authorizing Weinstein's access to the unit was not entered until October 2, 2025. The property was removed before there was any court order permitting it.

Weinstein's own MAC Protocol (Weinstein-090225, filed with TDLR, Sept. 8, 2025) required contents pack-out and cleaning under EPA Table 2 methods; Weinstein's counsel misrepresented to Ms. Copeland that contents cleaning was 'not a regulated activity' (Sortor letter, Nov. 7, 2025), a misrepresentation corrected in writing by Ms. Copeland on November 9 and CC'd to Benaicha.

At the time of the removal, Ms. Copeland was homeless. She was displaced because Weinstein had denied her ADA/FHA accommodation request, issued a retaliatory

nonrenewal, and filed suit against her — the same conduct forming the basis of this demand. Weinstein's contractor removed the belongings of a disabled, displaced tenant asserting federal civil rights, without her consent, without a court order, and while she had nowhere to receive them.

At the TRO hearing on October 2, 2025, the Court directed Weinstein to return property and to identify and retrieve any items of medical necessity or sentimental value held by Reign Restorations. Weinstein's counsel sent correspondence on October 3 and again on October 5 through 6, 2025, offering return options. Ms. Copeland, still displaced with no stable address, was in no position to take delivery of the full contents of a mold-remediated apartment while simultaneously homeless. Weinstein has since sought court authorization to return the property uncleaned and to shift storage costs to Ms. Copeland. Ms. Copeland contends that the property — removed from a unit licensed assessor Kyle Reist declared "unfit for human occupancy" due to mold contamination — requires licensed remediation before it can be safely received by a person with documented mold-reactive conditions (MCAS).

Weinstein cannot authorize the removal of a disabled tenant's property without consent or court order, use the resulting homeless displacement as a basis to argue failure to retrieve, and then seek judicial cover to return contaminated belongings to a person who has nowhere to put them. The removal itself is a continuing § 3617 interference act: it uses Ms. Copeland's property as leverage against a person who exercised federal civil rights, compounding the displacement Weinstein created.

Corporate Ratification — Three Notices, Three Escalations:

January 8, 2026: [Written notice](#) sent directly to Lile Benaicha (lbenaicha@weinsteinproperties.com), Weinstein's in-house counsel, and Amy Brochstein (amye.brochstein@phly.com), Philadelphia Insurance Companies. The notice named 42 U.S.C. § 12203(b) and 42 U.S.C. § 3617 by statute, described the [January 5 motion](#) as 'intensification,' and demanded correction by January 13, 2026. Weinstein's response: [Response Ms. Copelands Status Update, ADA Notice and Request for Ruling by Submission and Motion for Transfer / Consolidation](#) filed January 13, 2026. Escalation, not correction. First ratification.

April 8, 2026: [Cease and desist](#) sent to Zavarelli and Sortor, copied to Benaicha and Brochstein, regarding third-party contact with the American Bar Association to suppress Ms. Copeland's published disability-rights article, [Access Is Not Advantage](#) (ABA 2026). Weinstein's response: [Sanctions motion](#) filed April 23, 2026. Escalation, not correction. Second ratification.

May 6, 2026: [Weinstein Properties filed as amicus](#) in a proceeding where it is not a party — a corporate act requiring organizational authorization — after Benaicha and Brochstein had already received two explicit written notices of federal civil rights exposure. Third ratification.

V. Weinstein Attacked the Medical Proof, Then Claimed There Was No Proof

Weinstein cannot plausibly claim lack of disability documentation while simultaneously attacking, minimizing, or moving to strike the medical evidence it received.

Dr. Isabel Huang of UT Southwestern has treated Ms. Copeland for hypermobile Ehlers-Danlos Syndrome with associated autonomic and neurologic complications. Dr. Huang documented significant functional limitations affecting sustained upright posture, cognitive exertion, stamina, visual processing, and safe participation in adversarial proceedings without accommodations.

The January 5, 2026 motion is not background context — it is a standalone interference event with a concrete outcome. When Ms. Copeland filed her December 29, 2025 Motion for ADA Accommodations, Weinstein's response was to file a motion to strike the physician evidence that made the accommodation request viable. (*Weinstein's Objections and Motion to Strike Dr. Huang Correspondence*, Jan. 5, 2026, at 4–5 ["sword and shield"]; *id.* at 7 ["affront to the judicial system and an abuse of process"]; *id.* at 8 [noting SSDI application "appears to have not been approved"].) The motion succeeded. The accommodation was denied without physician evidence. That is § 12203(b) in operation: Ms. Copeland exercised an ADA right; Weinstein interfered with the evidentiary basis for that right; the court acted on Weinstein's interference; the right was effectively denied.

Three specific things in the January 5 filing create independent liability. First, pages 4–5 characterize Ms. Copeland's ADA accommodation requests as "manipulation of the litigation process," "an affront to the judicial system," and "abuse of process" — representations made to the very court ruling on her accommodations. Second, pages 5–6 assert that neither Weinstein nor the court is "required by contract, statute or state and/or federal law" to provide accommodations — a factually incorrect statement about Title II of the ADA, made in a proceeding governed by Title II. Third, and most significantly: page 8 states that the SSDI application "appears to have not been approved (or not yet approved), at this point" and that "if she had any document which confirmed that she has been assessed by any agency to be 'disabled' — she would have produced this by now." That sentence was written January 5, 2026. The SSA Fully Favorable Decision was served on Zavarelli and Sortor on March 23, 2026 — 77 days later. The May 6 amicus then claimed Ms. Copeland had "wholly failed to provide documentation." The January 5 filing proves Weinstein's counsel tracked the pending SSDI application, assumed it would fail, and then — when it did not — filed as if it had never issued.

Weinstein Filed Inside an ADA Proceeding to Exclude Physician Evidence (January 5, 2026)

Weinstein then filed objections and/or a motion to strike Dr. Huang's correspondence, including arguments that my reliance on disability evidence was improper or manipulative. (*Weinstein's Objections and Motion to Strike Dr. Huang Correspondence*, Jan. 5, 2026, at 4–5 ["sword and shield"]; *id.* at 7 ["affront to the judicial system and an abuse of process"]; *id.* at 8 [noting SSDI application "appears to have not been

approved"].) The motion succeeded — physician evidence was excluded from the ADA accommodation proceeding.

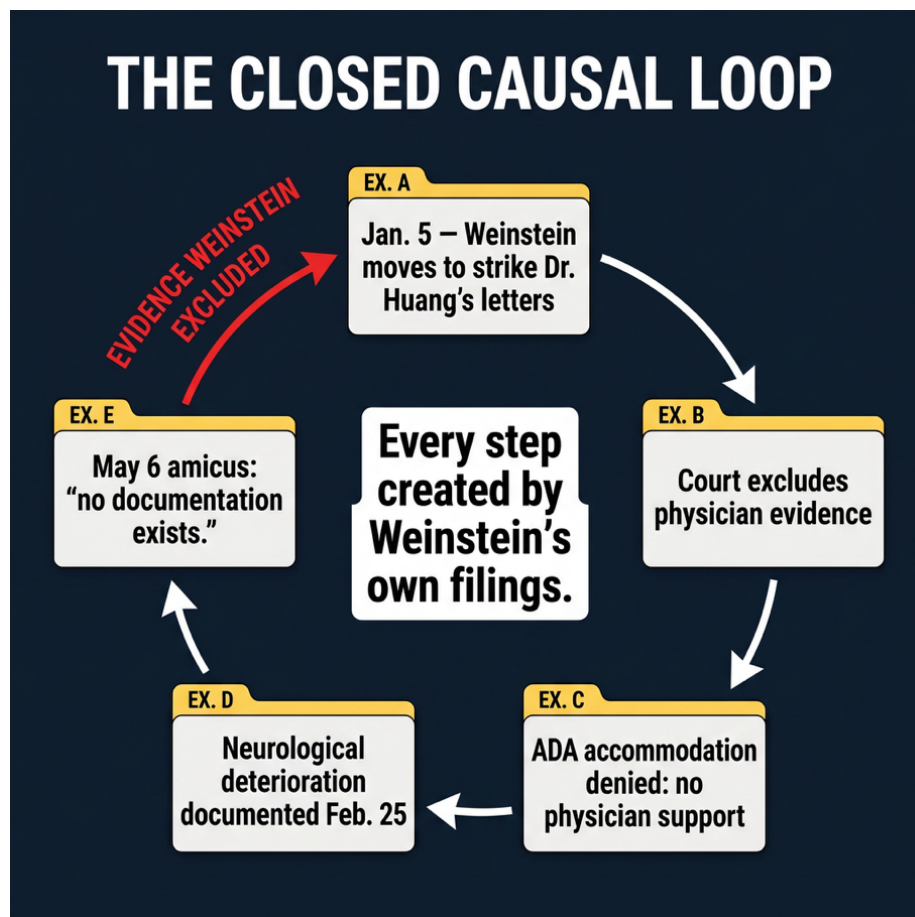
After that, Weinstein’s May 6 amicus represented that I had “wholly failed to provide documentation confirming the basis for her disability.” (Amicus Br., May 6, 2026, at 6–7.)

Core contradiction: Weinstein received medical documentation, attacked the proof pathway, and then used a lack-of-documentation narrative in another proceeding.

Why This Case Resolves at Settlement or at Summary Judgment — Not at Trial

Three closed causal loops, each fully documented by Weinstein's own filings.

A "closed causal loop" means every step of the interference — the act, the protected activity it targeted, and the concrete harm it caused — is in writing. There is no factual dispute. The documentation is Weinstein's own court filings.



Loop 1 — Proof suppression (January 5 → May 6, 2026)

Weinstein's January 5 motion to strike Dr. Huang's correspondence acknowledges receipt of the physician letters and moves to exclude them. The motion succeeds. The accommodation is denied without physician support. Dr. Huang documents acute neurological worsening on February 25, 2026 — directly caused by the denied accommodation. Weinstein's May 6 amicus then represents to a court that Copeland "wholly failed to provide documentation."

The documentation Weinstein claims is absent is the documentation Weinstein's own January 5 motion excluded. A factfinder does not need to make any inference. Weinstein's filings prove both that the documentation existed and that Weinstein caused it to be excluded before claiming it didn't exist.

This is the most legally unusual feature of this case. No viable defense exists for this sequence because the evidence of bad faith is the filing itself.

Loop 2 — Housing retaliation (August → October 2025)

Insurance representative Amy Brochstein confirmed in writing on August 14–15, 2025 that temporary housing would continue until remediation was completed. On September 8, 2025, Dallas Mold Consultants inspected Unit 2145 and found "no equipment on site," "no negative pressure on the containment," and concluded "all contents in the apartment should be considered contaminated." On October 27, 2025, Weinstein cut off hotel housing. Remediation was not complete. The unit remained contaminated. The written promise and the documented contamination are both in the record.

Loop 3 — Cross-proceeding pincer (May 6–8, 2026 / imminent harm)

On May 6, 2026, Weinstein entities filed a nonparty amicus brief in a case where they are not a party, attacking Copeland's disability documentation, and transmitted it to Judge Newell in their own case. On May 8, Copeland's response was rejected — "Rejected — Vexatious Litigant." The May 15, 2026 deadline is imminent. Weinstein filed where a response was blocked. The false documentation narrative now sits before the court unanswered.

This is the irreparable harm for TRO/preliminary injunction purposes. Once May 15 passes, the record is set.

Elements and proof – no gaps

Element	Document proving it
Protected FHA/ADA activity	June 27, Aug. 14–15, Aug. 18, Dec. 29 accommodation requests; March 4 emergency ADA motion
Weinstein had actual notice	Jan. 5 motion (acknowledges physician letters); Jan. 8 notice to Benaicha/Brochstein; multiple court filings
Coercion, intimidation, or interference	Jan. 5 motion to strike; Oct. 27 housing cutoff; May 6 nonparty amicus; May 8 filing rejection
Causal connection	Temporal proximity (nonrenewal 11 days after Aug. 18 demand); Jan. 5 motion directly caused exclusion of evidence that caused accommodation denial; Sept. 8 inspection proves Oct. 27 cutoff was premature
Corporate knowledge / ratification	Jan. 8 notice to Benaicha + Brochstein; Jan. 13 escalation (not correction)

Why each defense fails in one sentence

Litigation privilege / Noerr-Pennington: The sham exception applies because the Jan. 5 motion was filed with knowledge that the documentation it characterized as absent actually existed; the fraud exception applies because Sortor made affirmative misrepresentations of regulatory law to a tribunal after receiving authority establishing the opposite.

No disability / no documentation: The SSA Fully Favorable Decision (April 10, 2026, onset June 8, 2023) is a federal agency adjudication under 42 U.S.C. § 423; a state party cannot relitigate federal disability status, and the argument that no documentation exists is made by the same party whose January 5 filing proves the documentation existed.

Reasonable accommodation was offered: Zavarelli's September 19, 2025 call confirms the Holiday Inn location was inaccessible given Copeland's documented balance and cognitive impairments; housing tied to remediation completion was cut off before remediation was complete; inadequate accommodation that is then terminated is not reasonable accommodation.

Copeland obstructed remediation: Zavarelli stated on September 19, 2025: "I'm not aware of TDLR stopping our remediation work"; ServPro withdrew after receiving Copeland's DTPA demand and consulting its own attorney — Weinstein's own counsel concedes no obstruction by Copeland.

What a federal judge sees at the TRO hearing

Likelihood of success: The closed causal loops mean no factual dispute — the acts are in Weinstein's own filings. Likelihood of success is high as a matter of law.

Irreparable harm: (1) May 15 deadline — false disability narrative becomes permanent record. (2) Ongoing housing instability and neurological deterioration documented by UT Southwestern. (3) Harm is not compensable by money damages alone because the record is being written right now.

Balance of equities: Weinstein is asked not to file more disability-discrediting materials and to correct a false statement already made. Copeland faces ongoing homelessness, worsening documented injury, and an unanswered false narrative before the court. The balance is not close.

Public interest: Congress enacted § 3617 and § 12203(b) specifically to prevent this. Federal courts enforce these statutes.

VI. Accommodation Requests Were Functional, Specific, and Protected

Before the May 6 amicus, I had filed and served materials explaining that my requested accommodations were tied to specific functional limitations, including cognitive processing, stamina, communication, sustained sitting, upright tolerance, photophobia, safe participation, housing instability, and access to medical equipment / essential property. (Dec. 29, 2025 Mot. for ADA Accommodations; Jan. 9, 2026 ADA Status Request; Mar. 4, 2026 Emergency Mot. to Change Hearing Format; Mar. 10, 2026 Verified Mot. for Continuance and Notice of ADA Barriers.)

Those requests were not requests for “unlimited advantage.” They were requests for reasonable modifications and meaningful access based on documented disability-related limitations.

By characterizing protected accommodation activity as abusive, obstructive, and inconsistent with adversarial litigation, Weinstein’s May 6 amicus foreseeably chilled my continued exercise of FHA / ADA rights and encouraged courts to treat disability accommodation requests as misconduct rather than protected activity.

VII. Procedural Pressure and Sanctions Escalation

Weinstein’s conduct also includes repeated efforts to convert disability-related access barriers into sanctions, strike requests, contempt threats, fee requests, and case-dispositive relief.

In the 141st District Court case, Weinstein sought sanctions based on alleged discovery noncompliance, including relief that would strike my counterclaims and affirmative defenses, support default-type relief, impose contempt consequences, and shift attorney's fees — even though I had raised transcript-access, clarification, and disability-related processing barriers. ([April 23, 2026 sanctions motion](#))

Weinstein also sought sanctions in the County Court / JP appeal track in connection with consolidation, representation-status disputes, alleged unauthorized filings, and the vexatious-litigant order. ([Weinstein's Mot. for Sanctions, Apr. 13, 2026.](#))

Pattern: Weinstein did not merely oppose accommodations; it repeatedly escalated accommodation-related limitations, record-access issues, and protected litigation-access activity into punishment theories.

VIII. Weinstein Is Enforcing a Void Court Order to Suppress Federal Rights Activity (Ongoing)

The interference pattern includes a fifth mechanism. A January 21, 2025 vexatious litigant order — entered approximately 235 days after the May 31, 2024 final order in that proceeding — is void for want of jurisdiction. Under *In re Florance*, 377 S.W.3d 837 (Tex. App.—Dallas 2012), a court loses plenary power 30 days after entry of final judgment absent a timely post-judgment motion. An order entered more than 200 days outside that window is void, not merely voidable. Despite this, multiple courts have enforced the order as though it were valid.

The direct consequence for this demand: my May 8, 2026 response to Weinstein's amicus brief was rejected by the clerk with the notation 'Rejected — Vexatious Litigant / due to vexatious litigant case filing is rejected.' That rejection left Weinstein's May 6 disability-discrediting brief before Judge Newell without response, rebuttal, or correction — precisely Weinstein's intended effect. Weinstein's May 6 amicus and the vexatious litigant enforcement mechanism operated together: one filed false documentation claims into the record, the other blocked my ability to correct those claims.

The indigency challenge further illustrates the pattern. While I was hospitalized with documented neurological complications of hEDS, Weinstein's counsel challenged my indigency status in the JP retaliation appeal — the only proceeding, and the only time, Weinstein mounted an indigency challenge against me. The challenge occurred precisely when my documented disability made meaningful response most difficult. This is not coincidence. It is a deliberate pattern of deploying procedural mechanisms against me at peak vulnerability.

Weaponizing a void court order to block a disabled person from filing federal court responses is not ordinary litigation strategy. It is interference with the right to access federal courts to vindicate federal disability rights — textbook § 12203(b) interference. The Noerr-Pennington sham exception applies: filing under a void order, with knowledge

of its jurisdictional defect, removes any immunity that would otherwise protect litigation conduct.

Weinstein also submitted affidavit testimony from Pam Quinn, Weinstein Properties' Assistant Director of Asset Management and Support — a corporate back-office role with no operational responsibility at the property level. [Ms. Quinn had no personal knowledge of the facts](#) to which she attested regarding Ms. Copeland's tenancy, the remediation decisions made at Unit #2145, or the communications between Ms. Copeland and property management. Affidavit testimony submitted without personal knowledge is not protected petitioning activity. *Bill Johnson's Rests. v. NLRB*, 461 U.S. 731 (1983); *PRE*, 508 U.S. at 60–61 (fraud and sham exceptions to Noerr-Pennington). Submitting false declarations in litigation to obtain adverse court orders against a disabled person is itself an interference act under § 3617 and § 12203(b).

IX. May 15 Deadline Creates Immediate Risk

On May 8, 2026, Judge Newell's coordinator stated that all materials to be considered should be submitted by **5:00 p.m. on May 15, 2026**, and that Judge Newell would consider the matter by submission. (Email from Angie D. Wierzbicki, Ct. Coordinator, 233rd JDC, May 8, 2026: "all parties submit everything...no later than 5 p.m. on May 15, 2026.")

My May 8 response to Weinstein's amicus was rejected due to the vexatious-litigant restriction, leaving Weinstein's anti-accommodation narrative pending and largely unanswered before the May 15 deadline. (Electronic Filing Rejection Notices, Envelope No. 114646219, May 8, 2026, 10:58 AM: "Rejected — Vexatious Litigant / due to vexatious litigant case filing is rejected." Clerk: LMStole@tarrantcountytx.gov.)

This demand does not ask Weinstein to control any court's process. It asks Weinstein to correct its own misleading disability-documentation narrative, serve any disability-related materials it submits, and refrain from using cross-proceeding filings to make protected accommodation activity appear illegitimate.

X. Legal Basis

Corporate-Level Knowledge and Punitive Damages Standard

Ms. Weinstein holds a Juris Doctor from Washington University School of Law (1987) and is the signatory to Weinstein Properties' ADA Site Compliance program. [Her biography](#) also displays the Equal Housing Opportunity logo — the federal symbol of FHA compliance under 42 U.S.C. § 3604. A co-president and attorney who publicly represents her company as ADA- and FHA-compliant, and whose General Counsel received written notice of federal civil rights violations beginning June 30, 2025 and chose to escalate

rather than correct, cannot claim the interference below was inadvertent. The punitive-damages standard — 'malice or reckless indifference,' *Kolstad v. ADA*, 527 U.S. 526 (1999) — is satisfied on the face of this record.

FHA § 3617

The Fair Housing Act makes it unlawful to “**coerce, intimidate, threaten, or interfere with**” any person in the exercise or enjoyment of FHA-protected rights, including rights connected to disability-based housing accommodations. 42 U.S.C. § 3617.

The FHA authorizes actual damages, punitive damages, injunctive relief, attorney’s fees, costs, and appointment of counsel where appropriate. 42 U.S.C. § 3613.

ADA § 12203(b)

The ADA likewise makes it unlawful to “**coerce, intimidate, threaten, or interfere with**” any individual in the exercise or enjoyment of ADA-protected rights. 42 U.S.C. § 12203(b).

The Fifth Circuit has recognized that ADA interference is distinct from ordinary retaliation analysis and turns on whether the defendant coerced, intimidated, threatened, or interfered with the exercise or enjoyment of ADA rights. *Strife v. Aldine Indep. Sch. Dist.*, No. 24-20269, slip op. at 17 (5th Cir. May 16, 2025).

This Is Not Ordinary Litigation Disagreement

Weinstein could have opposed specific accommodations on their legal merits. Instead, Weinstein allegedly:

- filed a nonparty amicus attacking disability status and accommodation activity;
- attacked the treating physician evidence;
- claimed lack of documentation after receiving documentation;
- cut off housing after protected FHA / ADA activity;
- sought sanctions and case-dispositive relief after disability-access barriers were raised; and
- portrayed protected accommodation requests as abuse, manipulation, or “unlimited advantage.”

That pattern supports FHA / ADA interference exposure.

Direct Notice to General Counsel Was Legally Appropriate

Weinstein engaged at least two separate outside law firms across its litigation campaign: Wentz & Zavarelli (141st District Court retaliatory suit; JP Court Precinct 3 retaliation small claims and Repair & Remedy cases) and Higier Allen & Lautin (JP Court Precinct 5 eviction, JP05-25-E00044950; counsel of record: rhenderson@higierallen.com, rrodriguez@higierallen.com). No single outside counsel possessed authority over all proceedings or over Weinstein's independent federal civil rights compliance obligations. Each firm's engagement was limited to the specific proceedings it was retained to handle.

Direct written notice to General Counsel Lile Benaicha was therefore legally appropriate. The notices addressed Weinstein's own federal statutory obligations under the FHA and ADA — not the litigation strategy of any particular outside firm. General counsel is the appropriate institutional recipient for notice that an entity's conduct across multiple proceedings and multiple outside counsel constitutes a pattern of federal civil rights interference. The professional responsibility rules governing contact with represented parties apply to the subject matter of specific representations; they do not prohibit written notice to a represented entity's in-house general counsel regarding the entity's independent legal obligations and federal civil rights exposure. Benaicha had been CC'd on the original ADA/FHA accommodation request (June 30, 2025), the TDLR and HUD complaint notices (June 30, 2025), the November 9, 2025 housing-cutoff notice, and each subsequent federal demand. The January 8, 2026 statutory notice was not the beginning of Benaicha's awareness — it was at least the seventh documented communication to her over a period of more than six months.

Ms. Copeland, a former civil litigation insurance defense attorney (Naman, Howell, Smith & Lee, 2013–2017), recognizes that no competent in-house counsel reviewing these facts could conclude that Weinstein faced zero federal civil rights exposure — and that Benaicha, J.D., certainly knew it."

XI. Housing Stabilization Is Anti-Interference Mitigation

I do not seek to return to any Weinstein-managed property.

The requested housing relief is independent, medically appropriate housing stabilization. It is not requested as rent abatement, eviction relief, final damages, property-damage compensation, or adjudication of the state landlord-tenant dispute. It is requested as immediate anti-interference and mitigation relief to prevent ongoing coercion, housing instability, medical deterioration, and impairment of federally protected FHA / ADA activity.

Interim housing stabilization is not a windfall. It is a reasonable mitigation measure to stop ongoing FHA / ADA interference, prevent medical deterioration, and reduce damages while the parties address the record.

XII. Punitive-Damages, Insurance, and Coverage Exposure

The punitive-damages exposure is substantial because the record reflects repeated notice, repeated protected activity, physician documentation, an unfit housing condition, housing instability, a remediation-linked housing assurance, a later housing cutoff, attacks on medical proof, sanctions pressure, SSA / SSDI notice, and a May 6 cross-proceeding amicus portraying accommodation requests as unsupported and abusive after Weinstein had notice of medical and SSA materials.

A factfinder could conclude that Weinstein acted with reckless indifference to federally protected rights.

The Kolstad standard is satisfied on the face of the record. Weinstein Properties displays the Equal Housing Opportunity (EHO) logo on its company website as a public commitment under FHA § 3604. [Allison Weinstein](#) holds a Juris Doctor from Washington University School of Law (1987) and is the signatory to Weinstein Properties' ADA Site Compliance program. General Counsel Lile Benaicha was CC'd on [formal ADA/FHA accommodation requests and federal regulatory complaints](#) beginning June 30, 2025 — more than ten months before the May 6, 2026 amicus. A company whose co-president holds a law degree, whose general counsel received written federal civil rights notice in June 2025, whose website publicly advertises FHA compliance, and whose ADA compliance program bears the CEO's signature — and which nonetheless deployed void vexatious litigant orders to extinguish a disabled claimant's appeal rights, coordinated motions to exclude physician evidence across multiple forums simultaneously, filed a nonparty amicus characterizing disability accommodations as "unlimited advantage," and threatened disposal of a homeless disabled tenant's personal property — has not acted through ignorance. It has acted with reckless indifference to clearly established federal law. That is the Kolstad standard, and it is met here.

Insurance / coverage implications. Insurance materials on file identify a Tokio Marine Specialty / Philadelphia Insurance premises environmental policy, policy number PPK2284661-005, for the period June 1, 2024 through June 1, 2027, with stated limits of \$5,000,000 per contamination incident and \$5,000,000 aggregate.

The policy language appears to include coverage concepts relevant to bodily injury, sickness, disease, mental anguish, emotional distress, contaminants including mold, property damage, and, where allowable by law, punitive or exemplary damages.

At the same time, intentional conduct, willful misconduct, dishonest conduct, litigation conduct, and other exclusions or conditions may create coverage disputes. That tension is precisely why early resolution is necessary. Weinstein faces both covered defense / settlement pressure and potential uninsured punitive or conduct-based exposure if it refuses to cure after full notice.

XIII. Required Cure

To avoid immediate federal emergency litigation, Weinstein, WMCI Dallas X, LLC, Weinstein Management Co., Inc., their counsel, agents, insurers, vendors, representatives, and all persons acting in concert with them must confirm in writing by:

9:00 a.m. Central Time on Tuesday, May 12, 2026

that they will provide the following cure:

1. Independent Housing Stabilization

Weinstein must fund independent, medically appropriate housing stabilization for an initial period of **six months**, including application fees, deposits, move-in costs, rent, utilities, reasonable moving/storage coordination, and basic disability-related housing setup costs.

This housing must not be at any Weinstein-managed property and must not be conditioned on release of claims, confidentiality, dismissal, waiver of FHA / ADA rights, abandonment of accommodation requests, or any admission that Weinstein has satisfied its legal obligations.

As an immediate bridge, Weinstein must fund a minimum **90-day emergency bridge** within 48 hours, without prejudice to my demand for six months of stabilization or broader settlement relief.

2. Return / Transport / Review of Property

Weinstein must coordinate and fund the return or transport of all property removed from my unit and stored by Weinstein, its contractors, or its agents to the independent housing location or another mutually agreed safe location.

Because the property was removed from a documented mold-contaminated environment, this process must include reasonable precautions to prevent exposure and allow safe review, photographing, inventorying, cleaning, disposal, replacement, or remediation.

3. Replacement of Medically Necessary Items and Basic Setup

Weinstein must provide an immediate fund for replacement of medically necessary items, basic household essentials, bedding, bathing supports, air filtration / dehumidification as medically necessary, and other items required to stabilize housing and prevent further medical deterioration.

4. Correction / Supplementation of the May 6 Amicus

Weinstein must correct or supplement any statement that I “**wholly failed**” to provide disability documentation, medical evidence, or accommodation-related records. Any correction must identify the physician letters, SSA / SSDI determination materials, accommodation filings, medical records, and disability documentation previously provided, filed, or known to Weinstein.

5. Anti-Interference Standstill and Record Transparency

Weinstein must agree not to submit, transmit, rely on, or encourage reliance on its May 6 amicus brief, or any substantially similar material, in any proceeding before Judge Newell unless and until the record is corrected and all parties have a meaningful opportunity to respond.

Weinstein must confirm that any material submitted to Judge Newell or court staff concerning me, my disability, accommodations, litigation conduct, FHA rights, or ADA rights will be filed of record, served on all parties, and subject to objection or response before consideration.

6. No Misleading Disability-Documentation Narrative

Weinstein and its agents must not knowingly state, imply, or represent to any court, agency, insurer, housing provider, contractor, vendor, or third party that I failed to provide disability documentation or medical evidence without also disclosing the known physician letters, SSA / SSDI determination materials, accommodation requests, and medical records already provided or filed.

7. Preservation of Evidence

Weinstein and its agents must preserve all documents, communications, metadata, drafts, notes, emails, text messages, billing entries, internal memoranda, insurer communications, vendor communications, attorney-client / work-product logs, and electronically stored information relating to my disability, accommodation requests, physician letters, SSA / SSDI materials, the May 6 amicus, communications with court staff, cross-case strategy, housing, property, medical equipment, insurer communications, and any decision to characterize accommodation requests as obstruction, bad faith, fraud, abuse, manipulation, or unfair advantage.

8. Attorney's Fees / Limited-Scope Counsel

Weinstein must separately pay reasonable limited-scope attorney's fees incurred to investigate, prepare, negotiate, and, if necessary, file emergency FHA / ADA interference relief. Such payment must be separate from housing stabilization funds and must not reduce amounts available for housing, medical stabilization, property logistics, or mitigation.

9. Executive-Level Settlement Conference

Weinstein must agree to an expedited settlement conference or mediation with a representative who has authority to resolve interim housing, correction of the record, property logistics, preservation, anti-interference terms, insurance / claims coordination, and attorney's fees.

10. Insurance Notice, Claims Coordination, and No Waiver

Weinstein must provide this demand to all applicable insurers, claims representatives, third-party administrators, and coverage counsel within **48 hours**, including Tokio Marine Specialty Insurance Company and Philadelphia Insurance Companies, and must preserve all insurer / insured communications relating to disability, accommodation requests, housing, property removal, mold remediation, claims handling, defense strategy, the May 6 amicus brief, sanctions requests, and coverage issues.

This demand is structured to permit early resolution without requiring Weinstein to admit liability or waive legitimate defenses. Nothing in this demand waives any right, remedy, coverage position, claim, objection, policy condition, exclusion, or right to seek relief beyond available insurance proceeds if Weinstein's conduct is found to be intentional, willful, malicious, dishonest, retaliatory, or otherwise excluded from coverage.

XIV. Settlement Options

Option	What Weinstein does	Why this works
A. Full emergency cure	Six months independent housing + correction + standstill + preservation + property logistics + fees	Avoids federal emergency filing and reduces damages.
B. Bridge cure	90 days independent housing immediately + correction + standstill + mediation within 14 days + fees	Buys time without requiring admission of liability.
C. Refuse / ignore	No cure	Refusal will be presented as evidence of ongoing interference and lack of voluntary correction.

If Weinstein does not agree to cease the interference, correct the record, preserve evidence, fund independent housing stabilization, return or transport property for review, and pay emergency limited-scope attorney's fees, I intend to seek immediate federal relief, including a temporary restraining order, preliminary injunction, declaratory relief,

appointment of counsel, damages where available, punitive damages, attorney's fees and costs, and all other appropriate relief under the FHA and ADA.

Plaintiff intends to present this case record to civil rights attorneys who litigate FHA and ADA interference matters on contingency. Upon engagement of counsel, Defendants' attorney fee exposure under 42 U.S.C. § 3613(c)(2) and § 12205 will be added to the damages calculation. The current window to resolve this matter without fee-shifting is narrowing.

Nothing in this letter waives any rights, claims, objections, remedies, privileges, appellate issues, or arguments. All rights are reserved.

Respectfully,

A handwritten signature in black ink that reads "Kathryn Copeland". The signature is written in a cursive, flowing style.

Kathryn M. Copeland

State Bar No. 24086056

Tel: (817) 789-8498

Email: Katie@KatieCopeland.com

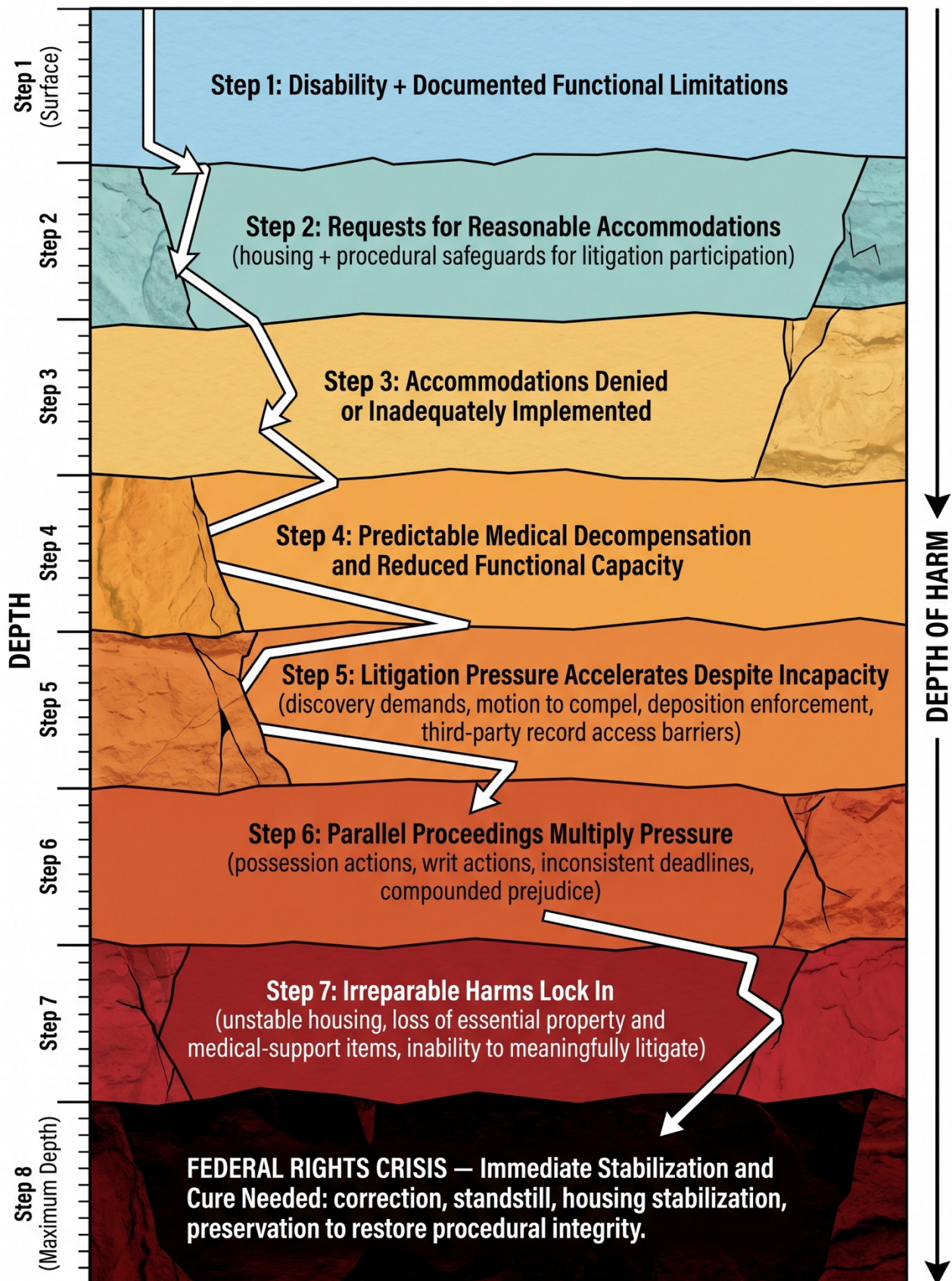


EXHIBIT A

INTERFERENCE TIMELINE WITH CASE REFERENCES

Copeland v. WMCI Dallas X, LLC d/b/a Weinstein Properties et al.

FHA § 3617 | ADA § 12203(b) | FHA § 3604(f)(3)(B)

Date	Act / Interference	Forum / Proceeding	Case No.	Federal Claim	Source
PRE-LITIGATION — PROPERTY LEVEL					
June 30, 2025	2:08 PM: Formal ADA/FHA accommodation request sent to Kodi Walker, CC'd directly to Lile Benaicha (General Counsel). Attachments: BioTex report (unit 'unfit for human occupancy'), State Farm denial, TDLR § 1958.101. 5:42 PM: Walker denies: 'we are not able to accommodate requests for relocation or hotel reimbursement.' 8:50 PM: TDLR #0000018107 + HUD complaint filed; notice sent to Benaicha with complaint numbers and July 1 deadline. Benaicha had actual written notice of federal civil rights exposure by close of business June 30, 2025.	Property level (pre-litigation)	N/A	§ 3604(f)(3)(B) — failure to accommodate § 3617 — original denial Benaicha actual notice established	Source
July 5, 2025	Jessika Calkins (senior leasing mgr.) calls Plaintiff 5 days after Benaicha received federal notices. States 4+ times: 'We're not required to relocate you.' Threatens lease enforcement. Explicitly subordinates ADA to lease: 'Our obligation is to follow our lease agreement.' Confirms corporate-level review: 'our upper management... we are very well versed in these things.'	Corporate / property level	N/A	§ 3617 — original interference act § 12203(b) Corporate ratification of June 30 denial	Source
Aug. 14, 2025	Copeland sent FHA/ADA accommodation request to Weinstein.	Corporate / property level	N/A		Source
Aug. 14-15, 2025	Insurer representative Amye Brochstein then wrote: "The temporary housing/hotel will be extended until the remediation is completed." — establishing protected activity, reliance, and later reversal/cutoff theory.	Insurer level	N/A		Source
Aug. 18, 2025	Second federal DTPA/FHA demand letter sent to Weinstein and ServPro.	Property level	N/A	§ 3617 — protected activity establishing notice	Source
Aug. 26, 2025	Weinstein issues lease nonrenewal — 8 days after the Aug. 18 federal demand. No legitimate lease violation cited. Benaicha had been CC'd on federal civil rights claims for nearly two months.	Property level	N/A	§ 3617 — retaliatory nonrenewal	Source
Sept. 8, 2025	Dallas Mold Consultants inspects Unit 2145: "No equipment on site and no negative pressure on the containment." "All contents in the apartment should be considered contaminated." Protocol expressly incorporates contents handling and cleaning as part of the regulated remediation project. Section 4.2 ("Cleaning Procedures") states: "CONTENTS: Pack-out and clean contents according to Table 2: EPA Cleanup Methods at the end of this document."	Property level	N/A	§ 3604(f)(3)(B) — uninhabitable conditions documented by Weinstein's own contractor; § 3617 — report concealed by Weinstein's counsel at Oct. 2 TRO and Oct. 16 TI hearing. Fraud on court / spoliation — adverse inspection report in counsel's possession when injunctive relief sought	Source

Sept. 10, 2025	Copeland treated at Texas Health Fort Worth Emergency Department for assault. Diagnoses: scalp hematoma (initial encounter), cervical sprain (initial encounter), strain of thoracic region (initial encounter). CT head, CT cervical spine, and thoracic spine imaging ordered. Morphine and Zofran administered. Police report #250067642 filed; Emergency Protective Order requested. Discharge paperwork printed 1:53 AM Sept. 11. Weinstein has had the Dallas Mold contamination report for 2 days. Copeland is staying in hotel housing during remediation with no resolution from Weinstein on accommodation requests.	Texas Health Fort Worth Emergency Department (pre-litigation)	Police Report #250067642 (Tarrant County)	§ 3604(f)(3)(B) — Weinstein's failure to provide adequate disability-appropriate housing during remediation creates conditions of vulnerability; mold exposure exacerbates underlying disabilities § 3617 — medical record documents harm occurring during Weinstein's ongoing accommodation failure	Texas Health Fort Worth ER After Visit Summary, 9/10/2025; Hospital Notes 9/10/2025; Police Report #250067642
Sept. 11-16, 2025	Zavarelli calls Sept. 11 (same day as hospital discharge) and refuses to fund transport for Copeland's belongings. Without transport, Copeland cannot resolve lodging at Bowie House. Despite a negotiated deal, Copeland is arrested for criminal trespass at Bowie House. With no hotel and no funded alternative, Copeland is forced BACK INTO Unit 2145 — the unit Weinstein's own contractor documented as contaminated on Sept. 8 — while recovering from scalp hematoma and cervical/thoracic injuries, on hydrocodone and muscle relaxants. This is the direct, documented causal chain from Weinstein's refusal to provide adequate accommodation.	Corporate / property level (pre-litigation)	N/A (pre-litigation)	§ 3604(f)(3)(B) — refusal to fund transport post-hospitalization forces disabled assault victim back into documented contaminated unit § 3617 — coercive housing conditions; arrest at hotel caused by Weinstein's accommodation failure Direct causal chain from accommodation refusal to physical harm	Sept. 16, 2025 Copeland email to Sortor; police report #250067642; ER records (Texas Health FW, 9/10/2025)
Sept. 16, 2025	Copeland emails Sortor, Zavarelli, Benaicha, Quinn, and Brochstein documenting the full sequence: Weinstein's transport refusal led to arrest at Bowie House; Copeland is recovering from assault in contaminated unit. Requests Hotel Drover at \$549/night (negotiated 2-week rate), meals, and transport. Weinstein response (Sortor): Holiday Inn Fossil Creek or Holiday Inn Fort Worth Downtown — with a 6:30 PM deadline and a statement that failure to respond "will assume that you have secured alternate lodging." All five principals have actual written notice of assault, hospitalization, and forced return to contaminated unit.	Corporate / insurer level (pre-litigation)	N/A (pre-litigation)	§ 3604(f)(3)(B) — refusal to provide disability-appropriate accommodation post-assault; interactive process replaced with 30-minute deadline § 3617 — coercive conditions compounding harm following protected FHA/ADA activity	Sept. 16, 2025 email chain: Copeland → Sortor, CC: Zavarelli, Benaicha, Quinn, Brochstein

JP COURT — RETALIATION SMALL CLAIMS (Copeland v. Weinstein) (Registry of Actions)					
Aug. 21, 2025	Plaintiff files Small Claims Petition for Retaliation under Texas Property Code § 92.331 (through attorney John A. Douglas). Exhibits: ADA request letters, mold notification, maintenance reports, lease and renewal.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 92.331 retaliation claim — protected activity. Establishes forum for Weinstein's subsequent interference	Source
Aug. 26, 2025	Weinstein files Answer + Request for Injunctive Relief inside Katie's own retaliation case — immediately seeking injunctive relief against the plaintiff in the case she brought.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — weaponizing plaintiff's own proceeding	Source
Oct. 21, 2025	Weinstein files Motion to Conduct Limited Discovery in small claims case. Discovery is not ordinarily available in small claims proceedings — burden tactic designed to disadvantage pro se plaintiff with documented disabilities.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — procedural burden tactic § 12203(b)	Source
Dec. 24, 2025	Plaintiff files Notice of Medical Documentation in Support of ADA Accommodation Request in JP3 proceeding.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	Protected activity — ADA accommodation request Establishes notice in JP3 forum	Source
Jan. 5, 2026	Weinstein files Motion to Strike Dr. Huang's physician correspondence in JP3 — same day as identical motion in 141st District Court. Coordinated attack across two forums simultaneously to eliminate medical evidence of disability.	Justice Court, Precinct 3 Tarrant County, TX (simultaneous: 141st Dist. Ct.)	JP03-25-SC00028212 (also 141-370402-25)	§ 12203(b) — coordinated evidence suppression § 3617	Source
Jan. 13, 2026	Weinstein files Motion for Transfer/Consolidation of JP3 case with Pending Litigation in 141st District Court — attempting to kill Plaintiff's retaliation claim by absorbing it into Weinstein's own retaliatory suit, where Weinstein controls the docket.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — forum manipulation First formal ratification (with Jan. 8 statutory notice)	Source
Jan. 14, 2026	Judgment for Defendant (Weinstein) in retaliation small claims case. Parties bear own costs.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	Result of retaliatory litigation campaign	Source
Jan. 20, 2026	Plaintiff files Notice of Appeal (to County Court at Law, de novo). Weinstein immediately files Motion to Strike Pro Se Plaintiff's Notice of Appeal, invoking the January 21, 2025 Vexatious Litigant Order from 231st District Court — an order that is void ab initio for lack of subject matter jurisdiction (plenary power had expired; mandatory transfer divested jurisdiction November 12, 2024).	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — using void VL order to extinguish appeal § 12203(b)	Source
Feb. 4, 2026	Weinstein contests Plaintiff's Statement of Inability to Pay (SIP) for Appeal — blocking access to County Court at Law de novo review on financial grounds while Plaintiff is homeless and on SSDI.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — blocking appellate access Abuse of SIP contest process	Source
Feb. 13, 2026	Order Granting Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order. Plaintiff's Notice of Appeal stricken — 'has no legal force or effect.' Plaintiff's right to de novo review in County Court at Law extinguished. Plaintiff was experiencing acute neurological medical event and notified opposing counsel; had formally requested ADA accommodations; court did not implement sufficient safeguards. Hearing proceeded despite medical emergency.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — de novo review extinguished via void VL order § 12203(b) — ADA accommodations denied during hearing Due process violation	Source
Mar. 19, 2026	Order Denying Plaintiff's Motion to Vacate Order Striking Notice of Appeal & Reinstate Appeal. Appeal remains stricken.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-SC00028212	§ 3617 — continued suppression of appellate rights	Source

JP COURT — REPAIR & REMEDY (Copeland v. Weinstein, JP3)					
Nov. 3, 2025	Plaintiff files Repair & Remedy petition under Texas Property Code § 92.056. Seeks judicial order compelling Weinstein to remediate mold and restore habitability. Case assigned to JP Court Precinct 3.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 3617 — protected activity (asserting habitability rights tied to FHA/ADA accommodation) § 3604(f)(3)(B) — failure to maintain habitable conditions	Source
Nov. 10-18, 2025	Wentz & Zavarelli attorney initially tells court she is not attorney of record for the apartments. Service avoidance causes case to be dismissed November 18, 2025. Tactic adds weeks of delay and deprives Plaintiff of timely hearing on habitability claim during period Plaintiff was displaced.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 3617 — procedural obstruction; service avoidance causing dismissal § 12203(b)	Source
Nov. 20-21, 2025	Plaintiff files Motion to Reinstate Case on November 20. Court reinstates case November 21.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 3617 — forced reinstatement after wrongful dismissal	Source
Dec. 8, 2025	Plaintiff (pro se, hEDS/SSDI, homeless and displaced) files ADA accommodation request to appear by Zoom for December 9 hearing. Weinstein opposes Zoom appearance.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 12203(b) — opposing disability accommodation in judicial proceeding § 3617	Source
Dec. 9, 2025	Hearing proceeds with asymmetric participation: Plaintiff appears by Zoom, pro se, without counsel; Weinstein appears in person with legal counsel. Court enters judgment against Plaintiff for \$15,000. Weinstein filed counterclaim for sanctions within Plaintiff's own repair case.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 12203(b) — accommodation opposition creating procedural disadvantage § 3617 — sanctions counterclaim in Plaintiff's own case	Source
Dec. 11, 2025	Weinstein files Motion to Strike Plaintiff's Notice of Appeal — invoking the void January 21, 2025 Vexatious Litigant Order from 231st District Court to extinguish Plaintiff's right to appeal the Repair & Remedy judgment.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 3617 — void VL order weaponized against appeal rights § 12203(b)	Source
Jan. 6, 2026	Second judgment entered: \$19,368.50.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	Result of retaliatory litigation campaign	Source
Jan. 7, 2026	Weinstein files second Motion to Strike Plaintiff's Notice of Appeal in Repair & Remedy — again invoking void VL orders to eliminate appellate access.	Justice Court, Precinct 3 Tarrant County, TX	JP03-25-RR00000029	§ 3617 — repeated use of void VL order against appeal § 12203(b)	Source
Jan. 12, 2026	Statement of Inability to Pay granted; Repair & Remedy case forwarded to County Court at Law for de novo review. Both Motions to Strike ultimately denied in R&R proceeding.	Justice Court → County Court at Law Tarrant County, TX	JP03-25-RR00000029	§ 3617 — appeal preserved despite Weinstein's obstruction	Source
Jan. 21, 2026	Weinstein counsel sends email notice to Copeland stating, <i>"Please be advised that the remediation and repair work has been completed on Apt. 2145."</i>	Property Level	JP03-25-RR00000029	Establishes the repair was not complete at the time of the hearings	Source

This case is still ongoing through de novo appeal with Tarrant County Court at Law 2.

JP COURT — EVICTION (WMCi Dallas X v. Copeland, JP5) (Registry of Actions)					
Dec. 12, 2025	Weinstein files eviction petition through Higier Allen & Lautin (Roberto Rodriguez) — a different law firm from Wentz & Zavarelli, which handled the 141st District Court retaliatory suit and JP3 proceedings. Use of separate eviction counsel supports Plaintiff's direct notice to in-house general counsel Benaicha: no single outside counsel possessed authority over all proceedings or over Weinstein's independent federal civil rights compliance obligations.	Justice Court, Precinct 5 Tarrant County, TX	JP05-25-E00044950	§ 3617 — retaliatory eviction following protected FHA/ADA activity § 3604(f)(3)(B) — terminating housing of disabled tenant asserting accommodation rights	Source
Jan. 9, 2026	Copeland files Answer and ADA accommodation request in eviction proceedings — asserting disability rights and reasonable accommodation as a defense and formal notice.	Justice Court, Precinct 5 Tarrant County, TX	JP05-25-E00044950	Protected activity — ADA accommodation request in eviction forum § 3617 notice established in JP5	Source
Jan. 23, 2026	Weinstein/Higier Allen sends notice regarding possession and contaminated personal property — threatening disposition of belongings while Plaintiff is homeless and unable to retrieve items due to disability and lack of resources.	Justice Court, Precinct 5 Tarrant County, TX	JP05-25-E00044950	§ 3617 — threatening disposal of disabled tenant's property § 3604(f)(3)(B)	Source
Jan. 30, 2026	Judgment for Weinstein (WMCi Dallas X) in eviction: \$14,573.23.	Justice Court, Precinct 5 Tarrant County, TX	JP05-25-E00044950	Result of retaliatory eviction proceeding	Source
Feb. 2, 2026	Order entered formalizing eviction and rent owed.	Justice Court, Precinct 5 Tarrant County, TX	JP05-25-E00044950	§ 3617 — eviction of disabled federal civil rights claimant	Source
Feb. 18, 2026	Writ of Possession requested and executed. Plaintiff's remaining personal property — including medical equipment, medication, clothing, and disability-related items — remains inside storage units under Weinstein's control. Plaintiff has been homeless since October 2025 and unable to retrieve belongings.	Justice Court, Precinct 5 Tarrant County, TX	JP05-25-E00044950	§ 3617 — forcible exclusion; continued detention of disabled person's personal property § 3604(f)(3)(B)	Source
Feb. 26, 2026	Plaintiff files Statement of Inability to Pay; eviction case appealed to County Court at Law for de novo review.	Justice Court → County Court at Law Tarrant County, TX	JP05-25-E00044950	§ 3617 — protected appellate activity	Source
JP COURT — ILLEGAL LOCKOUT (Copeland v. Weinstein, JP5)					
Jan. 15, 2026	Key to Unit 2145 stops working. Weinstein provides no statutory notice as required by Texas Property Code § 92.0081(b), no new key, and no alternative access. Plaintiff's personal property — including medical supplies, medication, disability equipment, and all personal belongings — remains inside the unit. Plaintiff is homeless and has no ability to retrieve items.	Justice Court, Precinct 5 Tarrant County, TX	JP05-26-SC00006700	§ 3617 — illegal lockout of disabled tenant asserting federal civil rights Tex. Prop. Code § 92.0081 — forcible exclusion without statutory notice	Source
Jan. 16, 2026	Plaintiff notifies both Weinstein property management AND Higier Allen (eviction counsel) of the lockout. Written notice to eviction counsel on same day establishes that Weinstein's attorneys of record in the eviction proceeding had immediate actual notice of the § 92.0081 violation.	Justice Court, Precinct 5 Tarrant County, TX	JP05-26-SC00006700	§ 3617 — written lockout notice to management and counsel Establishes actual knowledge for corporate ratification analysis	Source
~Feb. 4, 2026	Plaintiff files petition under Texas Property Code § 92.0081 (illegal lockout / forcible exclusion). Weinstein has never provided a new key, has not returned Plaintiff's personal property, and has threatened disposal of all items — while Plaintiff remains homeless and on SSDI without means to retrieve or replace belongings.	Justice Court, Precinct 5 Tarrant County, TX	JP05-26-SC00006700	§ 3617 — ongoing: detention of property, threats of disposal, forcible exclusion § 12203(b) — retaliation against federally protected activity Tex. Prop. Code § 92.0081	Source

VOID VEXATIOUS LITIGANT ORDERS — USED AS WEAPON IN JP3					
Jan. 21, 2025	231st District Court (Tarrant County) enters Vexatious Litigant Order. VOID AB INITIO: (1) plenary power expired at least 131 days earlier (final judgment May 31, 2024; plenary expired by Sept. 13, 2024); (2) mandatory transfer divested jurisdiction effective November 12, 2024 (Tex. Fam. Code § 155.206(d)). Under <i>In re Florance</i> , 377 S.W.3d 837 (Tex. App.—Dallas 2012), a VL motion does not fall within continuing enforcement jurisdiction. Order is a legal nullity. Used by Weinstein to strike Plaintiff's JP3 appeal on Feb. 13, 2026.	231st District Court Tarrant County, TX (family law case)	VOID ORDER	§ 3617 — void order later weaponized against federal civil rights claimant Collateral attack available at any time, any court	Source
141ST DISTRICT COURT — RETALIATORY LAWSUIT (Weinstein v. Copeland) (Registry of Actions)					
Sept. 19, 2025	Weinstein files retaliatory petition — two months after formal ADA/FHA demands, while possessing Sept. 8, 2025 Dallas Mold Consultants inspection report showing contamination worse than BioTex findings. Report not disclosed to Plaintiff or court when TRO later sought.	141st District Court Tarrant County, TX	141-370402-25	§ 3617 — retaliatory litigation Noerr-Pennington sham exception	Source
Sept. 23–24, 2025	Before any court order: Dedicated Mold (Weinstein's contractor) coordinates with Reign Restorations to pack and remove Plaintiff's personal property from Unit 2145 without Plaintiff's consent. Large volume moved to Reign Restorations storage. Substantial items left unsecured. TRO not entered until October 2.	Property level (pre-TRO; 141st Dist. Ct. pending)	141-370402-25 (background)	§ 3617 — property seizure without consent or court order Disabled tenant displaced, belongings held	Source
Oct. 2, 2025	Weinstein obtains ex parte TRO (\$1,000 bond). Sept. 8 mold inspection report — showing worse contamination than BioTex — not disclosed to court. Plaintiff unable to appear due to disability-related circumstances.	141st District Court Tarrant County, TX	141-370402-25	§ 3617 — interference via fraudulent TRO Fraud on court / spoliation	Source
Oct. 16, 2025	Default Temporary Injunction entered. Plaintiff — a person with documented neurological and physical disabilities — was unable to appear. Bond protecting Plaintiff's interests: \$1,000. Trial set May 11, 2026.	141st District Court Tarrant County, TX	141-370402-25	§ 3617 — interference with housing and civil rights activity Default obtained against disabled pro se party	Source
Oct. 27, 2025	Weinstein and Philadelphia Insurance (Brochstein) cut off hotel housing. Brochstein takes position that lease expiration ended alternative-housing obligation — despite August written commitment tying housing to remediation completion. Both principals had actual notice of federal claims.	Property / insurance level (141st Dist. Ct. pending)	141-370402-25 (background)	§ 3617; § 3604(f)(3)(B) Effective eviction during litigation; corporate ratification	Source
Nov. 3, 2025	Promise of housing revoked by Insurer contact, Amye Brochstein.	Insurer level	141-370402-25 (background)	Federal Claim: § 3617 — housing commitment revoked after protected activity; Brochstein notice established.	Source
Nov. 5, 2025	Stowers sent	Insurer level	141-370402-25 (background)		Source
Nov. 20, 2025	Stowers declined	Insurer level	141-370402-25 (background)		Source

Nov. 9, 2025	Email to counsel, Benaicha, and Brochstein <i>Ms. Brochstein and Ms. Benaicha, Your continued inaction in the face of documented misconduct and bad-faith dealings does not absolve you of responsibility—it implicates you in it. By remaining silent when the law demands intervention, you move from observer to participant. I have exhausted every reasonable avenue for voluntary compliance. If you persist in disregarding your statutory and ethical duties, I will seek judicial intervention to ensure accountability for the harm already done and the harm still occurring.</i> <i>Please confirm by 12:00 p.m. tomorrow that safe, ADA-compliant accommodations have been arranged for me, my children, and dogs. Any further delay will be treated as willful disregard of your duties under the FHA and insurer's good-faith obligations.</i> ... <i>This communication serves as formal notice that immediate relocation assistance is required under federal and state law. Absent confirmation by tomorrow, this correspondence will be submitted in support of emergency relief.</i>	Corporate / Insurer level		Federal Claim: § 3617 — written notice to Benaicha and Brochstein, third direct pre-statutory-notice contact; Source: Nov. 9, 2025 email to Benaicha/Brochstein	Source
Dec. 29, 2025	Copeland files Motion for ADA Accommodations and Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment	141st District Court Tarrant County, TX	141-370402-25	Protected activity — triggers Weinstein's Jan. 5 Motion to Strike 7 days later	Source
Jan. 5, 2026	Motion to Strike Dr. Huang's physician correspondence — attacking evidentiary basis for ADA accommodation request. Filed same day in both 141st and JP3. Motion acknowledges receipt of physician letters, then moves to exclude them.	141st District Court Tarrant County, TX	141-370402-25	§ 12203(b) — standalone evidence suppression § 3617	Source
Jan. 8 → 13, 2026	Jan. 8: Written statutory notice to Benaicha and Brochstein citing 42 U.S.C. § 12203(b) and § 3617 by statute. Jan. 13: Weinstein responds on Jan. 12, 2026 by filing Responses and Objections to Copeland's Emergency Motion for Interim Housing & Replacement of Medical Equipment and Response to Copeland's Request for ADA Accommodations across multiple forums. Escalation, not correction. First formal corporate ratification post-statutory notice.	141st District Court Tarrant County, TX	141-370402-25	§ 3617; § 12203(b) First formal ratification Kolstad punitive standard met	Source
Jan. 21, 2026	Weinstein sends email notice to Copeland stating, "Please be advised that the remediation and repair work has been completed on Apt. 2145."	Property level / email (141 st Dist. Ct. pending)	141-370402-25 (background)	§ 3617 — "remediation complete" notice issued 6 days after illegal lockout (Jan. 15); Plaintiff's key not restored; personal property still inside; no clearance certificate issued.	Source
Feb. 25, 2026	Letter sent to Court from Dr. Huang in support of administrative accommodations due to disabilities	141 st District Court	141-370402-25	Federal Claim: § 12203(b) — physician documentation, protected activity	Source

Mar. 25, 2026	Letter from Dr. Chiriboga stating, “diagnosis includes major depressive disorder recurrent, attention deficit and hyperactive disorder combined type, post traumatic stress disorder, and mild cognitive impairment. Due to increase anxiety and stress that can be triggered by situations such as court proceedings, I recommend for as many interactions as possible to be completed in written forms. This can allow Ms. Copeland additional time to organize and express her thoughts.”	141 st District Court	141-370402-25	Federal Claim: § 12203(b) — physician documentation, protected activity	Source
Mar. 26, 2026	Hearing occurs without accommodations. Copeland is harmed.	141 st District Court	141-370402-25	Federal Claims § 3617 and § 12203(b)	Source
Apr. 8 → 23, 2026	Apr. 8: Cease and desist to Wentz & Zavarelli/Sortor, CC'd to Benaicha and Brochstein, re: third-party contact with ABA to suppress Access Is Not Advantage (ABA 2026). Apr. 23: Weinstein files Motion for Sanctions against Plaintiff despite being the party with documented federal civil rights exposure.	141 st District Court Tarrant County, TX	141-370402-25	§ 3617 — second formal ratification Kolstad punitive standard met	Source
236TH DISTRICT COURT — DECKER CASE (Weinstein nonparty amicus)					
May 6, 2026	Weinstein Properties files nonparty amicus brief in Decker v. Kelly Decker — a proceeding where Weinstein has no standing. Brief addresses Plaintiff's ADA/disability rights. Corporate act requiring organizational authorization. Filed after Benaicha and Brochstein received multiple explicit written notices of federal civil rights exposure. Allison Weinstein, J.D. (Washington Univ. School of Law, 1987), is signatory to Weinstein Properties' ADA Site Compliance program. Company website footer displays Equal Housing Opportunity logo (FHA § 3604 public commitment) company-wide.	236th District Court Tarrant County, TX	236-363132-25	§ 3617 — third formal ratification § 12203(b) Kolstad: malice or reckless indifference satisfied on face of record	Source
May 8, 2026	Plaintiff's motion to strike / response to Weinstein amicus blocked. Weinstein filed without standing and response not permitted.	236th District Court Tarrant County, TX	236-363132-25	§ 3617 — ongoing interference § 12203(b)	Source

NOTES ON VOID VL ORDERS: The January 21, 2025 (231st District Court) and February 26, 2026 (236th District Court, Dallas County) vexatious litigant orders are void ab initio. A void order may be collaterally attacked at any time, in any court. Browning v. Placke, 698 S.W.2d 362 (Tex. 1985). Weinstein used the void 231st order to strike Plaintiff's Notice of Appeal in JP03-25-SC00028212 on February 13, 2026, extinguishing Plaintiff's right to de novo review in County Court at Law. CORPORATE NOTICE: Lile Benaicha (General Counsel, Weinstein Properties) received actual written notice June 30, 2025 — not January 8, 2026. All post-June 30 escalations constitute corporate ratification under Kolstad v. ADA, 527 U.S. 526 (1999) ('malice or reckless indifference').

EXHIBIT B

COST OF COMPLIANT CONDUCT VS. ACTUAL ESCALATION

Copeland v. Weinstein Management Co., Inc. et al. | N.D. Tex., Fort Worth Division

This exhibit demonstrates the economic irrationality of Defendants' litigation strategy by comparing (A) the documented cost to resolve Plaintiff's claims through compliant conduct as of July 26, 2025, against (B) Defendants' estimated expenditures in executing a fourteen-month, six-court interference campaign. Under *Kolstad v. American Dental Ass'n*, 527 U.S. 526 (1999), a corporation that spends multiples of the cost of compliance on litigation designed to defeat a disabled person's federal civil rights claims has exhibited, at minimum, reckless indifference to federally protected rights.

PART A — COST OF COMPLIANT CONDUCT

On July 26, 2025 — 26 days after Plaintiff filed HUD and TDLR complaints and 54 days before Defendants filed their retaliatory lawsuit — Plaintiff sent a fully itemized settlement proposal to Weinstein Properties marked "For Settlement Purposes Only." The following table reflects the documented cost to resolve all claims as of that date.

Item	Source / Notes	Amount
HOUSING & RELOCATION		
Immediate unit deposit	July 26 proposal — needed by Sept. 20, 2025 move-in	\$500
Prepaid rent for permanent housing	Realtor advised \$25K–\$35K for disabled/SSDI tenant; midpoint	\$30,000
Temporary housing (July 30 – Sept. 20)	July 26 proposal; midpoint of \$10K–\$20K estimate	\$15,000
Moving & storage assistance	July 26 proposal — professional movers, temporary storage	\$8,000
MEDICAL & TREATMENT		
Medical costs already incurred	July 26 proposal — lab testing, visits, mold treatment; midpoint \$10K–\$15K	\$12,500
Ongoing treatment fund	July 26 — hyperbaric O ₂ , supplements, Rx, therapy, home health	\$10,000
PROPERTY & FINANCIAL LOSSES		
Vehicle replacement	July 26 proposal — lost vehicle due to disability/mold-related income loss	\$50,000
Rent reimbursement (uninhabitable unit)	July 26 proposal; Stowers letter: \$53,724 rent abatement	\$49,500
TOTAL — COST OF COMPLIANT CONDUCT (July 26, 2025)		\$175,500

Source: Plaintiff's July 26, 2025 settlement proposal ("For Settlement Purposes Only — Proposal for Immediate Relocation Support"), sent to Kodi Walker and Jessika Calkins at Weinstein Properties. Weinstein did not respond with a counteroffer. Fifty-four days later, Defendants filed suit.

Note: This figure represents the July 26 baseline only and does not include the additional damages that accrued after Defendants chose litigation. The August 25, 2025 final demand, escalated to \$2M–\$5M in response to continued retaliation, reflects the cost of Defendants' decision not to resolve.

PART B — DEFENDANTS' ESTIMATED ESCALATION COSTS

The following table estimates the minimum litigation expenditure by Defendants across case No. 141-370402-25 and related proceedings, based on publicly available docket records and documented deposition certification costs. Defense litigation rates in the Dallas–Fort Worth market range from \$400–\$800/hour for experienced commercial litigation counsel.

Item	Basis / Documentation	Est. Cost
ATTORNEY FEES — CASE NO. 141-370402-25		
Attorney fees — 300 docket events	Docket: 141-370402-25. Conservative 4 hrs/event × \$450/hr avg. Multiple firms: Wentz & Zavarelli LLP; Higier Allen & Lautin	\$540,000
Expert witness designation & preparation	Docket 1/12/26: Defendants designated expert witnesses. Typical expert fees: \$350–\$600/hr	\$25,000+
Motion for Protective Order re: Sept. 8 report	Docket 10/10/25. Effort to conceal Dallas Mold Consultants report	\$5,000+
NONPARTY SUBPOENA CAMPAIGN		
Nonparty deposition certifications — documented	Cert. filing fees from docket: TX Health FW \$1,457 + TX DPS \$272 + Mold Lab \$231 + Bowie House \$245 + Dr. Chudri \$252 + Chris Copeland \$1,179 + FWPDP \$161	\$3,797
Attorney time — 30+ nonparty subpoenas	Notice, drafting, service, motion practice re: 30+ subpoenas. Conservative 5 hrs each × \$450	\$67,500+
Movant: Dr. Stephanie White (therapist)	Plaintiff's therapist subpoenaed; docket reflects motion practice	\$5,000+
MULTI-FORUM LITIGATION (FIVE ADDITIONAL COURTS)		
JP3 retaliation case defense	JP3 registry — Weinstein defending counter-suit; motions, hearings	\$30,000+
JP5 eviction proceeding	Filing, default proceedings, lockout coordination	\$15,000+
236th District Court — Nonparty amicus brief	May 6, 2026: Weinstein filed nonparty amicus in unrelated Decker case. Corporate authorization + drafting + filing	\$15,000+
Coordinated Jan. 5, 2026 motions (two courts)	Simultaneous filings 141st + JP3; Zavarelli emails to courts at 4:14 PM and 5:05 PM same day	\$10,000+
OTHER DOCUMENTED EXPENDITURES		
Hotel displacement payments (PHLY/Weinstein)	Weinstein Answer filed Oct. 20, 2025 admits paying 'exceeds \$40,000' for hotel. This was the cost of inadequate remediation — not credit against damages	\$40,000+
October 16, 2025 default TI — bond only \$1,000	Bond set at \$1,000 to protect Plaintiff's interest while all her property removed — confirms disproportionate resources	(\$1,000 bond)
ESTIMATED MINIMUM DEFENSE EXPENDITURE (Case 141 + 5 courts)		\$796,000+

Source: re:SearchTX docket, Case No. 141-370402-25, Weinstein Management Co., Inc. and WMC Dallas X, LLC vs. Kathryn Copeland (300 events, 9/19/25–5/10/26). Attorney fee estimates are conservative; actual expenditures may be substantially higher depending on billing rates and hours. Figures do not include Tokio Marine/Philadelphia Indemnity internal claims-handling costs.

PART C — ESCALATION RATIO & KOLSTAD ANALYSIS

Metric	Figure
Cost to resolve through compliant conduct (July 26, 2025)	\$175,500
Estimated minimum defense litigation expenditure	\$796,000+
Escalation ratio (litigation cost ÷ resolution cost)	4.5× minimum
PHLY policy limits (available to resolve entire claim)	\$5,000,000
Stowers excess exposure (damages above policy limits)	\$3.49M – \$4.99M
Days from July 26 settlement offer to retaliatory lawsuit	54 days
Days from August 15 PHLY housing promise to lease nonrenewal	11 days
Days from August 25 final demand to lease nonrenewal	1 day

Kolstad Analysis

Under *Kolstad v. American Dental Ass'n*, 527 U.S. 526 (1999), punitive damages are available under the Fair Housing Act when a defendant acts "in the face of a perceived risk that its actions will violate federal law." The escalation ratio documented here — a corporation spending more than four times the cost of resolution on litigation designed to defeat a disabled tenant's federal civil rights claims — satisfies that standard on the face of the record.

Three additional factors remove any good-faith defense:

- (1) Lile Benaicha, J.D., General Counsel, had actual written notice of federal civil rights exposure on June 30, 2025 — 26 days before the July 26 settlement offer;
- (2) Weinstein is a signatory to its own ADA Site Compliance program; and
- (3) Defendants escalated following three formal post-statutory-notice corporate ratifications (January 13, April 23, and May 6, 2026).

Under these facts, the escalation documented in this exhibit is not a business judgment — it is evidence of the malice or reckless indifference that authorizes punitive damages.